

Judge Thomas J. Lo

Department C44

Hearing Date and Time: September 24, 2026 @ 8:30 AM

Court Reporters: Official court reporters (i.e., court reporters employed by the Court) are **NOT** provided for law and motion matters in this department. If a party desires a record of a law and motion proceeding, it will be the party's responsibility to provide a court reporter. Parties must comply with the Court's policy on the use of privately retained court reporters which can be found at:

- [Civil Court Reporter Pooling](#); and
- For additional information, please see the court's website at [Court Reporter Interpreter Services](#) for additional information regarding the availability of court reporters.

Tentative rulings: The court endeavors to post tentative rulings on the court's website in the morning, prior to the hearing. However, ongoing proceedings such as jury trials may prevent posting by that time. Tentative rulings may not be posted in every case. Please do not call the department for tentative rulings if tentative rulings have not been posted. The court will not entertain a request to continue a hearing or the filing of further documents once a tentative ruling has been posted.

Submitting on tentative rulings: If all counsel intend to submit on the tentative ruling and do not desire oral argument, please advise the Courtroom Clerk or Courtroom Attendant by calling (657) 622-5244. Please do not call the department unless all parties submit on the tentative ruling. If all sides submit on the tentative ruling and so advise the court, the tentative ruling shall become the court's final ruling, and the prevailing party shall give notice of the ruling and prepare an order for the court's signature if appropriate under Cal. R. Ct. 3.1312.

Non-appearances: If nobody appears for the hearing and the court has not been notified that all parties submit on the tentative ruling, the court shall determine whether the matter is taken off calendar or the tentative ruling becomes the final ruling. The Court also might make a different order at the hearing. (*Lewis v. Fletcher Jones Motor Cars, Inc.* (2012) 205 Cal.App.4th 436, 442, fn. 1.).

Appearances: Department C44 conducts non-evidentiary proceedings, such as law and motion hearings, remotely by Zoom videoconference pursuant to Code of Civil Procedure section 367.75 and Orange County Local Rule 375. Any party or attorney,

however, may appear in person by coming to Department C44 at the Central Justice Center, located at 700 Civic Center Drive West in Santa Ana, California. All counsel and self-represented parties appearing in-person must check in with the courtroom clerk or courtroom attendant before the designated hearing time.

All counsel and self-represented parties appearing remotely must check-in online through the court's civil video appearance website at <https://www.occourts.org/media-relations/civil.html> before the designated hearing time. Once the online check-in is completed, participants will be prompted to join the courtroom's Zoom hearing session. Participants will initially be directed to a virtual waiting room pending the start of their specific video hearing. Check-in instructions and instructional video are available at <https://www.occourts.org/media-relations/aci.html>. The Court's "Appearance Procedures and Information--Civil Unlimited and Complex" and "Guidelines for Remote Appearances" also are available at <https://www.occourts.org/media-relations/aci.html>. Those procedures and guidelines will be strictly enforced.

Public Access: The courtroom remains open for all evidentiary and non-evidentiary proceedings. Members of the media or public may obtain access to law and motion hearings in this department by either coming to the department at the designated hearing time or contacting the courtroom clerk at (657) 622-5244 to obtain login information. For remote appearances by the media or public, please contact the courtroom clerk 24 hours in advance so as not to interrupt the hearings.

Arguments: The court will allow arguments on the pending motions up to 10 minutes per side, but those arguments must not repeat arguments previously made in each parties' applicable briefs.

No filming, broadcasting, photography, or electronic recording is permitted of the video session pursuant to California Rules of Court, rule 1.150 and Orange County Superior Court rule 180.

#	Case Name	Tentative
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1	American Express National Bank vs. Craft Beer N' Pizza Inc 2025-01509564	Motion for Summary Judgment and/or Adjudication <i>Case dismissed 9/22/26.</i>
2	Farago vs. Hoag Memorial Hospital 2026-01540129	Motion for Preference Plaintiff Shirley Farago’s motion for trial preference is GRANTED. Trial is set for January 11, 2026 at 8:30 a.m. in this department. The court finds good cause to hear Defendant Hoag Memorial Hospital Presbyterian's Motion for Summary Judgment presently on calendar for 12/31/26, later than 30 days before the trial date. Under Code of Civil Procedure section 36, subdivision (a), a party to a civil action who is over 70 years of age may petition the court for a preference, which the court shall grant if the court makes both of the following findings: (1) the party has a substantial interest in the action as a whole, and (2) the health of the party is such that a preference is necessary to prevent prejudicing the party's interest in the litigation. Responding-party does not dispute that plaintiff is over the age of seventy years old and has a substantial interest in this litigation. (Opposition of Defendant Thomas Velling, M.D., p. 1, Ins. 3-4 [ROA 36].) Responding-party contends plaintiff failed to show that her current health is of such an ill state that trial preference is necessary to prevent prejudicing her interest in the litigation. The standard under section 36, subdivision (a) does not require a showing of imminent death or complete incapacity. In <i>Fox v. Superior Court</i> (2018) 21 Cal.App.5th 529, the court explicitly rejected the argument that a plaintiff must demonstrate “death or incapacity might deprive [her] of the opportunity to have [her] case effectively tried.” The court emphasized that section 36 requires only a showing that the party’s health is such that a preference is necessary to prevent prejudicing her interest in the litigation — a more open-ended standard than the “substantial medical doubt of survival beyond six months” required under subdivision (d). The court held that the proposed reading requiring a showing of likely unavailability for trial sets the prejudice standard too high. (<i>Id.</i>) Plaintiff’s evidence presents a compelling case under this standard. Plaintiff’s marked and continuing physical decline — including near-constant pain, severely limited mobility requiring

		a walker, dependence on assistance for daily activities, and advanced osteoporosis causing additional vertebral fractures — demonstrates ongoing deterioration that would be prejudiced by delay. More importantly, her declining memory and inability to recall the timeline of events underlying the case directly threatens her ability to participate meaningfully in the litigation. This cognitive decline goes to the heart of her capacity to assist in her own case and provide testimony about the events at issue. Plaintiff Shirley Farago’s motion for trial preference is GRANTED. The court finds plaintiff has met her burden under Code of Civil Procedure section 36, subdivision (a) and has shown she has a substantial interest in the action as a whole, and that an expedited trial is necessary to prevent prejudicing her interest in the litigation. Plaintiff Farago to give notice.
3	Gutierrez-Perez vs. MemorialCare Medical Foundation 2026-01562591	Demurrer to Complaint Motion to Strike Portions Of Complaint Case Management Conference <i>Hearings continued.</i>
4	Hasso vs. McDougal 2026-01566319	Motion to Set Aside/Vacate Default and Judgment <i>Continued to 12/11/26.</i>
5	K5 Capital Group LLC vs. Alpha Logistics Management Inc. 2025-01513860	Motion to Be Relieved as Counsel of Record (2) <i>Vacated. Notice of settlement filed 9/16/26.</i>
6	Kennedy vs. Barnholtz 2026-01572169	Motion to Dismiss <i>Continued to 12/3/26.</i>
7	Nguyen vs. Neighborhood Gym LLC 2026-01539722	Motion for an Order Setting Hearing Date <i>Continued to 12/10/26.</i>
8	Parodi vs. United Medical Doctors 2026-01553558	Demurrer to Complaint <i>Vacated. Ruling issued 9/21/26.</i>

9	Pinzon vs. Opes Investments Inc. 2025-01509447	Motion Determining that Plaintiff is a Consumer Plaintiff Daniel Pinzon’s “Motion for Order (1) Determining Plaintiff is a Consumer for Purposes of Arbitration; (2) Requiring Defendant to Bear all Arbitration Costs; or, in the alternative, (3) Declaring Arbitration Provision Unenforceable” is GRANTED in part. The court finds that moving plaintiff has sufficiently demonstrated he is entitled to “relie[f] from an order compelling arbitration due to ... inability to afford to initiate or continue arbitration proceedings.” (<i>Sanchez v. Superior Court</i> (2025) 108 Cal.App.5th 615, 630, citing <i>Roldan v. Callahan & Blaine</i> (2013) 219 Cal.App.4th 87; plaintiff’s supplemental declaration [ROA 69], ¶¶ 3-14, 17, 20, 22-24, and Ex. A-E thereto.) The court further finds that “financial status is not a result of the party's intentional attempt to avoid arbitration ...” (<i>Weiler v. Marcus & Millichap Real Estate Investment Services, Inc.</i> (2018) 22 Cal.App.5th 970, 981; ROA 69, ¶¶ 35, 38.) Accordingly, the court orders that the arbitration shall continue so long as defendant Opes Investment Inc. agrees to pay, or the arbitrator orders it to pay, all fees and costs of the arbitration; and (2) “if neither of those occur, the arbitration shall be deemed ‘had’ and the case may proceed in the superior court.” (<i>Weiler v. Marcus & Millichap Real Estate Investment Services, Inc.</i> , <i>supra</i> at 981.) The court sets a Status Conference re: Arbitration for January 8, 2027 at 8:30 a.m. in this department. At least five days prior, the parties shall file a joint statement as to the status of arbitration, including whether defendant Opes Investment Inc. agrees to pay, or the arbitrator orders it to pay, all fees and costs of the arbitration, and the current status of any arbitration proceedings at that time. Plaintiff shall give notice.
10	Rutledge vs. California Civil Rights Department 2026-01543235	Petition for Writ <i>Hearing vacated. Court set a hearing for 1/14/27. See minute order dated 9/23/26.</i>
11	Sanchez vs. Martinez	Motion to Contest Good Faith Settlement Defendant / cross-complainant Joseph Emanuel Martinez’

	2025-01463096	motion to contest good faith settlement is GRANTED, without prejudice to the settling party providing additional information to the court by way of a new application. (Code Civ. Proc., § 877.6.) The original hearing was continued for the parties to provide supplemental briefing as to “a rough approximation of plaintiff[’s] total recovery and the settlor’s proportionate liability,” as well as “the financial conditions ... of settling defendant[.]” Joe Ortegon [“settlor”]. (<i>Tech-Bilt, Inc. v. Woodward-Clyde & Associates</i> (1985) 38 Cal.3d 488, 499 [“<i>Tech-Bilt</i>”] [factors considered in determining whether settlement is in good faith].) [See 6-30-26 minute order (ROA 103).] There is still insufficient evidence before the court as to the above factors, to find that the settlement was in good faith. First, settlor provides no evidence, as opposed to argument, as to his “proportionate liability” and/or the circumstances of the underlying incident. (<i>Tech-Bilt, supra</i> at 499; see also <i>City of Grand Terrace v. Superior Court</i> (1987) 192 Cal.App.3d 1251, 1262 [“<i>Grand Terrace</i>”] [“Settlor’s percentage of liability is the touchstone question to be considered by the trial court in a contested good faith settlement hearing”].) While settlor’s supplemental brief (ROA 120) describes the underlying incident, there is no evidence supporting same. (<i>In re Zeth S.</i> (2003) 31 Cal.4th 396, 413, fn. 11 [“unsworn statements of counsel are not evidence”]; <i>Gilman v. Dalby</i> (2021) 61 Cal.App.5th 923, 940 [“statements in motions are not evidence”].) In contrast, defendant Martinez’ evidence includes his declaration indicating the subject incident involved three separate impacts: an initial “minor” impact between the Sanchez and Martinez vehicles, and a later collision between the Martinez and Ortegon vehicles, then a “very forceful” impact between the Ortegon vehicle and plaintiff Sanchez’ vehicle. (ROA 141, Martinez Decl., ¶¶ 2-8.) Even if Sanchez and Martinez bear some responsibility for stopping their vehicles in the HOV lane after the initial impact, it appears from the current evidentiary record that settlor Ortegon bears more substantial liability for plaintiff’s claimed injuries than indicated in his application and supporting papers. As to a “rough approximation of plaintiff[’s] total recovery,” settlor provides evidence of approximately \$17,500 in damages claimed by plaintiff Douglas Alexander Sanchez (medical expenses and loss of earnings), as disclosed in written discovery
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		responses. (ROA 120.) In contrast, Martinez’ evidence shows that plaintiff has served a settlement offer to compromise in the amount of \$99,999 (ROA 141, Zurawski Decl., ¶ 2), which well exceeds the amount of the current \$25,000 settlement. There is also no evidence of settlor’s financial condition, and/or whether settlor has any other assets to satisfy a potential judgment. (<i>Tech-Bilt, supra</i> at 499; see also <i>Grand Terrace, supra</i> at 1263-1264 [“The wealth or nonwealth of the settling defendant is a factor for the trial court to consider under <i>Tech-Bilt</i>”].) While settlor provides a signed “Affidavit of No Other Insurance,” which also indicates settlor was not in course and scope of employment, the attached affidavit is not under penalty of perjury. (Code Civ. Proc., § 2015.5 [declarations/affidavits must be “subscribed” under penalty of perjury by declarant]; <i>Kulshrestha v. First Union Commercial Corp.</i> (2004) 33 Cal. 4th 601, 612 [a declaration which does not comply with Code Civ. Proc., § 2015.5 is “defective” and of no evidentiary value].) Moving defendant Joseph Emanuel Martinez shall give notice.
12	Wynne vs. FCA US LLC 2026-01556389	Motion to Enforce CCP 871.26(H) <i>Continued to 10/21/26 in Department CM02.</i>